

21SMCV00260 21SMCV00260

County: los-angeles

Division: Civil Law and Motion

Department: O

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TENTATIVE RULING

July 28, 2026

21SMCV00260 (Mcalister v. Deutsch)

RELEVANT BACKGROUND

Michael Mcalister

(Plaintiff or Judgment Creditor) holds a monetary judgment against Defendants Lawrence Deutsch (Lawrence) and Jacob Deutsch (Jacob) (collectively, "Defendants" or "Judgment Debtors"), which remains unsatisfied.

INSTANT MOTION

On February 18, 2026, non-party Ashley Deutsch (Ms. Deutsch) filed the instant motion to quash service of the order to appear for examination or for a protective order. Plaintiff filed an opposition, and Ms. Deutsch filed a reply.

DISCUSSION

Upon ex parte application by a judgment creditor who has a money judgment and proof by the judgment creditor by affidavit or otherwise to the satisfaction of the proper court that a third person has possession or control of property in which the judgment debtor has an interest or is indebted to the judgment debtor in an amount exceeding two hundred fifty dollars (\$250), the court shall make an order directing the third person to

appear before the court, or before a referee appointed by the court, at a time and place specified in the order, to answer concerning such property or debt. The affidavit in support of the judgment creditor's application may be based on the affiant's information and belief.

(b) Not less than 10 days prior to the date set for the examination, a copy of the order shall be:

(1) Served personally on the third person.

(2) Served personally or by mail on the judgment debtor.

...

Code Civ. Proc., § 708.120.)

Ms. Deutsch's motion to quash service of the order to appear for examination is GRANTED on the basis that Plaintiff has not shown that the requirements of Code of Civil Procedure section 708.120 have been satisfied.

Code of Civil Procedure

section 708.120 requires the creditor to establish that the third person possesses or controls property in which the judgment debtor has an interest, or owes the judgment debtor more than \$250. Plaintiff offers no evidence of either circumstance. Nor does Plaintiff address either that Ms. Deutsch married the judgment debtor Jacob only recently or the premarital agreement submitted with the motion, which establishes that Ms. Deutsch and Jacob maintain separate property. Plaintiff identifies no asset of Jacob in Ms. Deutsch's possession or control and no debt she owes him. And Plaintiff cites no authority that Ms. Deutsch's marriage to Jacob is, by itself and in the face of her sworn declaration, sufficient to satisfy section 708.120.

In light of the above,
the Court need not consider the arguments concerning service.

Moving party's counsel
to give notice.